

Model Answer for Practice Problem #1

This is a model answer only—there’s no such thing as a perfect answer! A good answer might capture more, or less, or just different details than this example does. I also went slightly long—this is around 1,100 words, but I wanted to be particularly thorough for a model answer.

The key things to emphasize are: (1) identifying the correct rule, (2) applying that rule to the facts in a very detailed way, and (3) using a clear organizational structure for the answer that allows the reader to easily see the precise analysis leading to your conclusion.

A. The issue is whether the prejudgment attachment procedure violates the Due Process Clause.

The Fourteenth Amendment’s Due Process Clause applies to the states, so the O’Quinn state court is required to provide Due Process. Due Process requires an opportunity to be heard in a meaningful manner and at a meaningful time. To determine whether a party received a sufficient opportunity to be heard, courts apply a three-factor balancing test, weighing: (1) the interest of the party being deprived of something; (2) the risk of an erroneous deprivation using the current process, and the probable value of using more process; and (3) the burden on the party seeking the deprivation, and on the government, if more process is used. Generally, parties have a right to a pre-deprivation hearing, but if there are exigent circumstances, it may be sufficient to seize the thing first and then provide a post-deprivation hearing.

In this case, Dot can likely successfully challenge the attachment procedure.

(1) For the first prong, Dot has a quite significant interest: \$25,000. The Supreme Court has said that a house is a significant interest, and while \$25,000 is not as significant as a whole house, it’s still a lot of money. If Dot can’t access \$25,000 in her bank account, that substantially limits her financial flexibility.

(2) For the second prong, there is a large risk of error using the current process. Under the O’Quinn statute, the attachment happens without a prior hearing, so Dot doesn’t get a chance to tell her side of the story first. And the Supreme Court has emphasized that decisions are better when both parties get to tell their side of the story.

Moreover, although Pat does have to sign an affidavit, which provides some procedural protection, the affidavit is a really low bar. Pat doesn’t have to present any evidence, and Pat doesn’t even have to say that Dot is likely trying to hide assets. All Pat has to say is that she “believe[s]” that Dot “might attempt” to hide assets, and the court will “accept” that “as true.” Allowing large sums of money to be attached based on such vague statements of suspicion creates a large risk of wrongfully attaching that money.

There is a post-attachment hearing, which does use evidence, but it could be up to a month later. That's a long time to freeze funds based on vague, evidence-free suspicions.

At the very least, more procedure would help. For one thing, the hearing could be held sooner—say, within three days of attachment. Additionally, the bar for the plaintiff's affidavit should be much higher. For example, the plaintiff could be required to allege facts showing that the defendant is trying to hide assets, or could even be required to present some evidence. Then the court could evaluate things for itself, rather than having to “accept” the plaintiff's assertions “as true.” The plaintiff could also be required to post bond, which would help deter false claims.

The second prong therefore weighs heavily in favor of striking down the O'Quinn attachment procedure as insufficient process.

(3) Finally, more process would represent some burden for Pat.

Pat has an interest in making sure that Dot doesn't hide assets. And more procedural hurdles for Pat would make it easier for Dot to hide money. That also implicates the state's interest in properly enforcing its laws. Therefore, in the right case, it would be acceptable to allow attachment without a prior hearing, to stop someone from hiding assets.

But despite Pat's interest, it ultimately isn't too much of a burden to add a bit more process here. The court could, for example, raise the bar for the affidavit to require the plaintiff to allege some facts or present some evidence suggesting that the defendant is likely trying to hide assets. That higher standard would still allow any plaintiff who has a real reason to fear that assets are being hidden to get those assets attached before defendants can hide those assets.

Weighing all three factors, Dot has a big enough interest, there is enough value in using additional procedures to protect Dot's interest, and those procedures don't impose too much burden on Pat. Therefore, under the balancing test, the current process is constitutionally insufficient.

[Note: For all three of the prongs of the test, I think there's a plausible case that they come out differently than I have argued them here. For the first prong, one could emphasize how much larger a house is than the \$25,000 here. For the second prong, one could emphasize the fact that there is a hearing, with evidence. And for the third prong, one could emphasize, much more than I did, how much of a risk there would be of defendant managing to hide assets if the bar were higher for the plaintiff. So an answer that came out the other way, arguing that the O'Quinn attachment procedure is constitutional, could also do quite well.]

The one big thing to avoid for this question, though, is arguing that we know, from the fact pattern, that Dot is planning to move to a country where her assets are inaccessible, making it fair to attach them here. The balancing test is about what facts are presented to the government decision-maker, under the relevant process. So we're less concerned with what we know that Dot is planning to do, than we are with whether the affidavit, under the O'Quinn state statute, requires the plaintiff to sufficiently prove what Dot is planning to do. In other words, this question requires thinking procedurally about the procedural mechanisms that the state employs, rather than about what we happen to know ourselves about the case.]

B. The issue is whether the court should dismiss the complaint for failure to state a claim.

The complaint must meet the “plausibility” standard at the pleading stage. To determine that, we first identify conclusory allegations and set them aside. Then we assume that any remaining factual allegations are true, and we determine whether those facts make it “plausible” that the defendant violated the relevant substantive law.

This complaint fails to meet the plausibility standard.

In paragraph 1, the allegation that the parties “entered into a contract” is conclusory. It merely asserts that there was a contract, which is a legal conclusion, without indicating any facts about the making of the contract, or the contract’s terms. The complaint needs to have some facts to make it plausible that the plaintiff and the defendant actually formed a contract—otherwise, there’s no way for the plaintiff to show that the defendant *breached* the contract.

Further, even if there was a contract, the complaint does not plausibly show that the defendant breached it. In paragraph 2, the complaint doesn’t say what the “terms” of the agreement were. It is therefore conclusory to allege that the defendant acted “in violation of” those terms. In the rest of paragraph 2, it’s a close call whether the allegation that “Dot refused to work in business together” is a factual allegation, or is just another way to state the legal conclusion that Dot breached the contract. But even if we treat it as a factual allegation, we still don’t have any allegations about the “terms” of the agreement, so the fact that “Dot refused to work in business together” doesn’t suggest that the (unknown) “terms” of the contract were breached. (If I make a contract to sell someone an ice cream cone for \$1, it wouldn’t breach that contract if I refused to work with them on a business project!)

Finally, paragraph 3 only makes a conclusory allegation that there were damages, without any factual support to show that Pat suffered harm from any supposed breach of contract. That seems a lot like just saying the-defendant-unlawfully-harmed-me.

The complaint is therefore not plausible, so it should be dismissed (though we could consider giving Pat leave to amend, as it doesn't look like amendment would be obviously futile, assuming Pat knows why Pat thinks the contract's terms were breached).

C. I recommend the following revisions:

1. In 2013, Plaintiff Pat and Defendant Dot signed an agreement stating: "All sales of produce grown at the farm must be jointly approved in advance by Pat and Dot. The proceeds of any sale shall be evenly distributed between Pat and Dot."

2. In 2024, in violation of the requirement for sales to "be jointly approved in advance," Defendant Dot sold the harvest from the farm to a neighbor without telling Plaintiff Pat first.

[There are lots of available variations in exact phrasing here! The key is to suggest revisions that build in a lot more facts compared with the original Complaint's largely conclusory statements.]